

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, July 1, 2024. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2024-29871 against Sergeant Andres Toribio Tax Registry No. 945059. The case was conferenced on June 24, 2024, before Deputy Commissioner of Trials Rosemarie Maldonado who approved the negotiated penalty of a Command Discipline B with the forfeiture of TEN (10) vacation days for DADS No. 2024-29871 after Sgt. Toribio accepted the findings of substantiation of the allegations contained in the aforementioned Charges and Specifications. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-29871
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, TORIBIO	FIRST ANDRES	M.I. H	COMMAND 034 PRECINCT
SHIELD NO. 3138	TAX REGISTRY NO. 945059	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2007	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Andres TORIBIO, on or about November 25, 2022, at approximately 2100, while assigned to 034 PCT and on duty, in the vicinity of in front of 208 Dyckman Street, New York County, abused their authority as a member of the New York City Police Department, in that Sgt. Toribio arrested § 87(2)(b) unlawfully without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Andres TORIBIO, on or about November 25, 2022, at approximately 2100, while assigned to 034 PCT and on duty, in the vicinity of in front of 208 Dyckman Street, New York County, abused their authority as a member of the New York City Police Department, in that Sgt. Toribio searched the vehicle in which § 87(2)(b) was an occupant without sufficient legal authority.	DISMISSED	

DC Busino
FIRST DEPUTY COMMISSIONER

07/02/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

7/9/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner July 2, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-29871 against Sergeant Andres Toribio, Tax No. 945059, with the recommendation that the Charges and Specifications against Sergeant Toribio be dismissed and that Sergeant Toribio receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Deputy Commissioner, Trials Rosemarie Maldonado reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

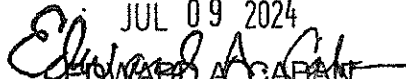
TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

JUL 09 2024


EDWARD A. CABAN
POLICE COMMISSIONER